

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No:

-----X
JAZLINE KING,

Plaintiff(s),

-against-

**THE CITY OF NEW YORK and POLICE OFFICER
ELIZABETH McNULTY (SHIELD #2763),**

Defendant(s).
-----X

Plaintiff designates
New York County
the place of trial

The basis of venue is
site of occurrence

SUMMONS

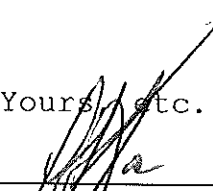
Plaintiff resides at:
2366 Lorillard Pl., 3D
Bronx, New York 10467

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
May 2, 2013

Yours, etc.,



David A. Karlin, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
Office & P. O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

Defendants' Address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007
POLICE OFFICER ELIZABETH McNULTY (SHIELD #2763)
PSA 5
221 E. 123rd Street
New York, New York 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JAZLINE KING,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

**THE CITY OF NEW YORK and POLICE OFFICER
ELIZABETH McNULTY (SHIELD # 2763),**

Defendant.
-----X

Plaintiff, by and through his attorneys, **BELOVIN & FRANZBLAU, LLP,**
as and for a verified complaint, respectfully alleges as follows:

1. At all times herein, plaintiff, **JAZLINE KING,** was and still
is a resident of the City and State of New York, County of Bronx.

2. At all times herein, the defendant, **THE CITY OF NEW YORK,** was
and still is a duly licensed Municipal Corporation authorized to
transact business in the City and State of New York, County of New
York.

3. Upon information and belief, the defendant, **THE CITY OF NEW
YORK,** employed several police officers and/or other employees, who were
herein duly employed and acting on behalf of the defendant within the
County of New York, City and State of New York.

4. At all times herein after mentioned, upon information and
belief the defendant, **THE CITY OF NEW YORK,** employed **POLICE OFFICER
ELIZABETH McNULTY (SHIELD # 2763).**

5. At all times herein after mentioned, upon information and belief the defendant, THE CITY OF NEW YORK, employed **POLICE OFFICER ELIZABETH McNULTY (SHIELD #2463)**, who was acting on behalf of the defendant, THE CITY OF NEW YORK, within the County of New York, City and State of New York.

6. Prior to the commencement of this action, on or about the 1st day of June, 2012 a Notice of Claim was duly served herein upon the defendants. Thereafter, a municipal hearing was duly held on or about the 11th day of February, 2013. More than thirty days have expired and the defendants have failed and neglected to adjust the claim.

7. Upon information and belief, at all times herein, the aforesaid Detectives, police officers and/or other agents, servants and/or employees, including but not limited to P.O. ELIZABETH McNULTY, were acting within the furtherance and scope of their employment with the defendant, **THE CITY OF NEW YORK**, under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and the County of New York, under the authority of the office as Police Officers for New York City.

AS AND FOR A FIRST CAUSE OF ACTION

8. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "7", above as if fully set forth herein.

9. On or about April 2, 2012 at a location in the vicinity of the front of 1370 5th Avenue, in the City and State of New York, County of New York, the defendants, jointly and severally through their Detectives, police officers, including but not limited to POLICE OFFICER ELIZABETH McNULTY (SHIELD #2763), committed **battery** upon the plaintiff when they wrongfully touched, grabbed, searched, handcuffed and seized the plaintiff, JAZLINE KING, in an excessive manner about her person, causing her physical pain, psychological pain and mental suffering. At no time did the defendants have legal cause to grab, search, handcuff, seize or touch the plaintiff, nor did the plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

10. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "9", above as if fully set forth herein.

11. On or about April 2, 2012 at a location in front of 1370 5th Avenue, in the City and State of New York, County of New York, the defendants, jointly and severally through their detectives/police officers, including but not limited to POLICE OFFICER ELIZABETH McNULTY (SHIELD # 2763), did **commit assault** upon the plaintiff when they placed plaintiff, JAZLINE KING, in imminent fear of physical contact by approaching the plaintiff with loaded firearms, outstretched limbs and other objects with which can be used to physically seize, strike and

restrain the plaintiff. All of the above actions placed the plaintiff in imminent fear of physical contact. At no time did the defendants have legal cause to act as set forth in this paragraph, nor did the plaintiff consent to the unlawful actions of the defendants, nor was it privileged by law.

AS AND FOR A THIRD CAUSE OF ACTION

12. Plaintiff repeats, reiterates and reallges all of the allegations contained in paragraphs "1" through "11" with full force and effect as though set forth at length herein.

13. On or about April 2, 2012 at a location in front of 1370 5th Avenue, in the City and State of New York, County of New York, the defendants, jointly and severally through their police officers, including but not limited to POLICE OFFICER ELIZABETH McNULTY (SHIELD # 2763) without a warrant, order or other legal process and without any legal right, wrongfully and unlawfully held plaintiff, arrested plaintiff and restrained plaintiff, depriving her of her liberty and time. The plaintiff was held in custody before she was released without any charges being brought. The defendants committed the act of **false imprisonment** of plaintiff when, by and through its Police Officers, defendants intentionally held, detained, restrained and confined the plaintiff without her consent and such was not otherwise privileged by law and, at all times, the plaintiff was conscious of being held, restrained and confined.

AS AND FOR A FOURTH CAUSE OF ACTION

14. Plaintiff repeats, reiterates and realleges all of the allegations contained in paragraphs "1" through "13" with full force and effect as though set forth at length herein.

15. On or about April 2, 2012 at a location in front of 1370 5th Avenue, in the City and State of New York, County of New York, the defendants, jointly and severally through their capacity as detectives/police officers, including but not limited to POLICE OFFICER ELIZABETH McNULTY (SHIELD # 2763), without a warrant, order or other legal process and without any legal right, wrongfully and unlawfully held plaintiff, arrested plaintiff and restrained plaintiff, depriving her of her liberty and time. The plaintiff was held in custody before this matter was dismissed by the Court at arraignment. The defendants committed the act of **false arrest** of plaintiff as set forth herein when by and through its detectives/police Officers, defendants intentionally held, detained, restrained and confined the plaintiff without her consent and such was not otherwise privileged by law and, at all times, the plaintiff was conscious of being held, restrained and confined.

AS AND FOR A FIFTH CAUSE OF ACTION

16. Plaintiff repeats, reiterates and realleges all of the allegations contained in paragraphs "1" through "15" with full force and effect as though set forth at length herein.

17. Defendant, THE CITY OF NEW YORK, at all times relevant, duly appointed and employed several detectives/police officers, including but not limited to POLICE OFFICER ELIZABETH McNULTY (SHIELD # 2463),

who were at all times, acting in their capacity as police officers.

18. At all times mentioned herein, said detectives/police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

19. Plaintiff, JAZLINE KING, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

20. The defendant, THE CITY OF NEW YORK, is a municipality duly incorporated under the laws of the State of New York and employed at all times, defendant, POLICE OFFICER ELIZABETH McNULTY (SHIELD # 2763).

21. On or about April 2, 2012 the defendants, by and through its employees, armed detectives/police officers, including but not limited to POLICE OFFICER ELIZABETH McNULTY (SHIELD # 2763), while effectuating the seizure of the plaintiff, JAZLINE KING, **committed civil rights violations more fully set forth herein** and did identify, target, profile, hold, stop, frisk, detain, restrain, search, seize, threaten to arrest, assault, commit a battery upon, unlawfully imprison and/or unlawfully arrest and grab the person of the plaintiff without a court authorized arrest or search warrant and without legal right and without reasonable suspicion or probable cause. They did physically seize the person of the plaintiff in an unlawful and excessive manner. The plaintiff was falsely stopped, assaulted, frisked, battered,

imprisoned, detained, restrained, searched, held and arrested without the defendant possessing probable cause to do so.

22. The above actions of the defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to her person;
- b. Freedom from battery to her person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from unlawful detention and/or false imprisonment;
- f. Freedom from the use of excessive force during the arrest process.

23. The defendants subjected the plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

24. The direct and proximate result of the defendants' acts are that the plaintiff has suffered severe and permanent injuries of the psychological nature. She was forced to endure loss of freedom, pain, suffering and humiliation, all to her detriment. The plaintiff did not consent to any of the defendants' actions set forth in this cause of action nor did defendant have legal cause to act in such a manner.

AS AND FOR A SIXTH CAUSE OF ACTION

25. Plaintiff repeats, reiterates and reallges all of the allegations contained in paragraphs "1" through "24" with full force and effect as though set forth at length herein.

26. Defendant, THE CITY OF NEW YORK, has grossly failed to train and adequately supervise its detectives/police officers in the fundamental law of stop, arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where the limitations of an order of protection are evident on the face of said documents and where an individual, especially as here, has not aroused a reasonable suspicion, has not committed a crime and has not resisted arrest, that its police officers should only stop an individual upon a reasonable suspicion and use responsible force to effectuate an arrest and the arrest should be based on probable cause.

27. Defendant, THE CITY OF NEW YORK, has grossly failed to train and adequately supervise its detectives/police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not aroused suspicion, has not committed a crime and has not resisted arrest, that its detectives/police officers should not stop such an individual and should only use responsible force to effectuate an arrest and the arrest should be based on probable cause.

28. The defendant, THE CITY OF NEW YORK, was negligent by failing to implement a policy with its police department and instruct detectives/police officers who, absent the consent of the plaintiff (and of similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said detectives/police officers of the City of New York are not to profile, target, detain and/or arrest individuals such as the plaintiff here where reasonable suspicion and/or probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

29. The defendant, THE CITY OF NEW YORK, is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Reasonable suspicion that a crime has been committed or is about to be committed must be present for police officers to stop and inquire of plaintiff.

2. Probable cause must be present before an individual such as the plaintiff herein can be stopped, held, handcuffed and searched.

3. Probable cause must be present before an individual such as the plaintiff herein can be arrested, stopped, held, handcuffed and searched.

4. Force cannot be used against an individual who does not physically resist arrest.

30. The foregoing acts, omissions and systemic failures are customs and policies of THE CITY OF NEW YORK, which caused the detectives/police officers to falsely identify, target, profile, hold, stop, detain, frisk, arrest, seize illegally and search the plaintiff and commit an assault/battery to his person attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

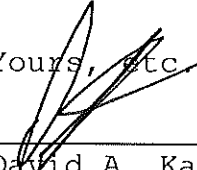
31. Plaintiff repeats, reiterates and reallges all of the allegations contained in paragraphs "1" through "30" with full force and effect as though set forth at length herein.

32. Defendant City of New York was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of The New York City Police Department, defendant knew or should have known of the bad disposition of said detectives/officers or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning her bad disposition and the fact that POLICE OFFICER McNULTY or other police employees involved in this incident were not suitable to be hired and employed by the defendant, THE CITY OF NEW YORK, and that due to their lack of training, these detectives/officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, plaintiff demands judgment in each cause of action against all defendants, in an amount which exceeds the jurisdictional limits of all lower Courts, together with costs, interest and disbursements of this action, together with attorney's fees, together with such other and further relief as this Court deems just and proper.

Dated: Bronx, New York

Yours, etc.,



David A. Karlin, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
Office & P.O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

VERIFICATION

State of New York)

ss:

County of Bronx)

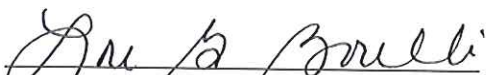
Jazline King, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above **VERIFIED COMPLAINT** and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.



Jazline King

Sworn to before me on

May 2, 2013



Notary Public

LORI G. BORELLI
Notary Public, State of New York
No. 01B05018162
Qualified in Bronx County
Commission Expires 9/20/2013